

IN THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

Mr. Justice Yahya Afridi, CJ

Mr. Justice Aqeel Ahmed Abbasi

Civil Petition Nos.300-Q, 303-Q to 312-Q of 2025

(Against the order dated 24.10.2025 passed by the High Court of Balochistan, Quetta in FAOs No.33 to 43/2025)

Najeebullah	(in CPLA No.300-Q/2025)
Haji Hussain Ali	(in CPLA No.303-Q/2025)
Abdul Hakeem	(in CPLA No.304-Q/2025)
Kaleemullah and others	(in CPLA No.305-Q/2025)
Abdul Jabbar	(in CPLA No.306-Q/2025)
Nouroz Ali	(in CPLA No.307-Q/2025)
Abbas Ali	(in CPLA No.308-Q/2025)
Ehsan Ali	(in CPLA No.309-Q/2025)
Ehsan Ali and others	(in CPLA No.310-Q/2025)
Hussain Ali	(in CPLA No.311-Q & 312-Q/2025)

...Petitioner(s)

Versus

Syed Shams-ud-Din and others
(in all cases)

...Respondent(s)

For the Petitioner(s): Mr. Manzoor Ahmed Shah, ASC

For the Respondent(s): N.R.

Date of Hearing: 23.04.2026

JUDGMENT

AQEEL AHMED ABBASI, J.- The instant petitions for leave to appeal have been filed under Article 185(3) of the Constitution of Islamic Republic of Pakistan, 1973 against the common impugned order dated 24.10.2025 passed by the High Court of Balochistan, Quetta in FAOs No.33 to 43/2025 wherein the High Court has maintained the consolidated order of learned Rent Controller, Quetta dated 28.03.2025, whereby, the eviction applications filed by Respondent No.1/landlord were allowed and the petitioners/tenants were directed to vacate the subject tenements (shops).

2. Briefly, the facts of the case as recorded by the learned Single Judge of the High Court of Balochistan, Quetta are that the Respondent No.1, being the joint owner and landlord of the premises known as “Gul Plaza, Hotel Pakiza”, situated at Abdul Sattar Road, Quetta, a property comprising forty-four shops and a hotel containing

thirty-two rooms, filed eviction applications before the learned Rent Controller, Quetta, seeking the eviction of the petitioners/tenants on the grounds of unlawful subletting, personal *bona fide* requirement, and default in payment of rent. He alleged that the tenants had sublet the shops in question to all the subtenants without his consent, and that this had been confirmed during an inspection conducted by the Receiver. On the other hand, the petitioners/tenants contested the eviction applications, asserting that Respondent No. 1 is not the lawful landlord, as the property is a *benami* holding of his predecessor-in-interest and remains unpartitioned among the legal heirs. They denied any subletting, claimed continued lawful possession with regular rent deposits, and alleged that the eviction applications are false, defective, and malicious. After hearing the parties and recording the evidence, the learned Rent Controller allowed the eviction applications filed by the Respondent No.1 on the ground of personal *bona fide* need and directed the petitioners/tenants to vacate the shops in question. Against the aforesaid eviction order, petitioners/tenants filed appeals in the High Court of Balochistan, Quetta, which were dismissed vide impugned order dated 24.10.2025. Hence these petitions.

3. Learned counsel for the petitioners/tenants has vehemently argued that the Hon'ble High Court of Balochistan has erred in law by allowing the eviction applications based on the Respondent No.1's testimony alone which according to learned counsel is inconsistent and the same was not proved. Learned Counsel further submitted that the claim of personal *bona fide* use is a mere pretext for eviction which is not supported by any corroborative evidence. It has been contended by the learned counsel that the learned Rent Controller and the Single judge of the High Court of Balochistan have misconstrued the principle of personal *bona fide* use under Section 13 of the Balochistan Urban Rent Restriction Ordinance, 1959 (the "**Ordinance**") and have wrongfully allowed the eviction of fifteen shops on the strength of solitary statement of the Respondent No.1 which is inconsistent and fails to satisfy the judicial test of personal *bona fide* need. It has been further submitted that Respondent No.1 allegedly got vacated the thirteen other shops during pendency of the litigation to let out the said shops at exorbitant rates rather than occupying them for his personal use. According to learned counsel, the inferences drawn and the conclusions made by the Single Judge of the High Court of Balochistan, Quetta are based on whimsical and flimsy

grounds by failing to appreciate the existence of a legitimate dispute over title of the property. He contended that the Respondent No.1 is merely a co-sharer in property and not the exclusive owner, therefore, he lacked the legal authority to unilaterally institute eviction proceedings, and as such, both the impugned orders are nullity in the eyes of law and warrant interference by this Honourable Court. It has been prayed that both the impugned orders may be set aside and the eviction applications filed by the Respondent No.1 may be dismissed.

4. Heard the learned counsel for the petitioners/tenants, perused the record with their assistance and examined the orders of the fora below.

5. Perusal of the record shows that *prima facie* title of the demised property and the relationship of landlord and tenants has been sufficiently established by Respondent No.1 through the production of registered Sale deed (Exh.A/3-A) and copies of receipts of rent (Exh.AW-1). The contention of the Petitioners regarding an ongoing dispute of partition between the co-owners does not invalidate Respondent No.1's status as a landlord. The petitioners cannot use the internal dispute among the co-owners as a ground against eviction. Reliance in this regard can be made on the case of Amin and others v Hafiz Ghulam Muhammad and others (**PLD 2006 SC 549**). Similarly, the contention of the petitioner's counsel that Respondent No.1 lacked the legal authority to unilaterally institute eviction proceedings is also unfounded and amounts to contumacious denial of ownership as it is a well settled legal position that even a single co-owner can maintain an eviction petition on behalf of other co-owners. The rationale behind this principle is that a co-owner acts on behalf of and represents the interest of all the co-owners of the property. Reliance in this regard can be placed on the cases of Muhammad Hanif and another v Muhammad Jamil Turk and 5 others (**2002 SCMR 429**), Haji Abdullah Jan v Anwar Khan (**PLD 2000 SC 787**), Abdul Ghani v Abrar Hussain (**1999 SCMR 348**) and Khalique Ahmed v Abdul Ghani and another (**PLD 1973 SC 214**). From perusal of the afore mentioned judgments, it can be safely concluded that eviction application can be filed by a co-sharer without even impleading other co-owners, as a co-owner is a landlord within the scope of definition of "landlord" appearing in clause (c) of section 2 of the Ordinance.

6. Adverting to the ground of personal *bona fide* need, the record reflects that the statement of the special attorney, Syed Amin-ud-din, on behalf of Respondent No.1 (Syed Shams-ud-Din) has been recorded on oath which is duly supported by the statements of witnesses Syed Nasrullah (AW-1) and Muhammad Din (AW-2). The above statements strengthen the stance of the Respondent No.1 that he is the co-sharer and landlord of the demised property. Further he is in charge of 16 families and in need of the subject tenements (shops) due to *bona fide* need of his own and the need of co-sharers and their children. It is further observed from the record that the Attorney of Respondent No.1 and his witnesses were put to lengthy cross-examination, yet their statements remained consistent and unshaken as reflected in reply to question No.24 of the cross-examination of special attorney, and the reply to question No.15 put up to AW-2 which states that "however, it is mutual property, needed by everyone for business". These statements along with the special power of attorney executed by all the other co-sharers, categorically reflect that the subject tenements (shops) are required not only for personal *bona fide* need of Respondent No.1 but for the collective use of the co-sharers and their respective children. It is well settled by now that the *bona fide* personal need is not restricted to the landlord alone but it extends to the landlords' children and family members also. Reliance in this regard can be placed on the cases of Salahuddin Ahmed v Khurram Sultan Abbasi (2025 SCMR 1691), Muhammad Hayat v Muhammad Miskeen(decd.) through L.Rs. and others (2018 SCMR 1441), Ferozuddin and another v Additional District Judge, Karachi East and another (2012 SCMR 1679) and Karachi Tannery (Pvt.) Ltd. v Muhammad Yousaf (2002 SCMR 680).

7. Learned counsel attempted to argue that Respondent No.1 sought eviction of shops earlier also from the tenants, however, did not use the same for personal use. Such contention of the learned counsel is mis-conceived as it is well-settled that the landlord is the best judge of his own requirement and has the liberty to choose the tenement for his personal *bona fide* use which may suit him best. Reliance in this regard can be placed on cases of Dr. Hassan Fatima v Pakistan Red Crescent Society and others (2026 SCP 132), Muhmmad Ziafat v Tariq Nawaz Khan and others (2026 SCP 41), Juma Sher v Shabz Ali (1997 SCMR 162) and Jehangir Rustam Kakalia through Legal Heirs v Messrs Hashwani Sales & Services (Pvt.) Limited (2002 SCMR 241).

Further Reference in this regard can be placed on a judgment given by Supreme Court of India in the case of Kanhaiya Lal Arya v. Md. Ehsan & Ors. (2025 INSC 271).

8. We have carefully examined the record and the orders of the learned Rent Controller and the Learned Single Judge of the High Court of Balochistan, Quetta and find that the orders passed by both the Courts below are well reasoned, based on proper appreciation of evidence on record and also depict correct legal position. This Court usually does not interfere in the concurrent findings recorded by the Courts in rent cases, particularly, if eviction application is allowed on the ground of personal *bona fide* need, unless those are perverse, arbitrary, fanciful or capricious which, in our view, is not the position in the instant case. Neither any misreading or nonreading nor any infirmity or illegality has been noticed on the record which may require this Court to take a contrary view. Accordingly, we do not find any substance in these petitions which are dismissed and leave is refused.

Islamabad:

23.04.2026

APPROVED FOR REPORTING

Tanveer Ahmed